IT is hereby notified that the Minister of Information, Communication and Technology, Postal and Courier Services has, in terms of section 99 of the Postal and Telecommunications Act [*Chapter 12:05*], made the following regulations:—

1. These regulations may be cited as the Postal and Telecommunications (Licensing, Registration and Certification) (Amendment) Regulations, 2022 (No. 1).

2. Section 2 of the Postal and Telecommunications (Licensing, Registration and Certification) Regulations, 2021, published in Statutory Instrument 12 of 2021 (hereinafter referred to as the ("principal regulations"), is amended—

(a) in the definition of "paging system" by the deletion of "send" and substitution of "sends";

(b) in the definition of "trunked system" by the deletion of "if" and substitution of "of".

3. Section 5 of the principal regulations is repealed and the following is substituted—

"5. (1) The Telecommunications Licence for Network Facilities Services shall authorise a licensee to build, own, and manage telecommunication network facilities for purposes of leasing or reselling capacity to telecommunications operators.

(2) The network facilities include—

(a) dark optical fibre cables;

(b) copper cables;

(c) towers and associated site equipment;

(d) ducting and associated civil works.".

4. Section 9(2) of the principal regulations is repealed and the following is substituted—

"(2) Unless specified in the licence document, a telecommunication licence for special circumstances shall be a

DISTRIBUTED BY VERITAS
e-mail: veritas@mango.zw; website: www.veritaszim.net
Veritas makes every effort to ensure the provision of reliable information,
but cannot take legal responsibility for information supplied.

short-term licence issued under special circumstances such as testing, research, emergency and or disaster relief.".

5. Section 10(2) of the principal regulations is repealed and substituted with the following—

"(2) Applications for a telecommunications licence for special services: rural fixed broadband wireless access systems shall be made in writing to the Authority and applicants shall, in connection therewith, supply such information as the Authority may require.".

6. Section 12 of the principal regulations is repealed and the following is substituted—

"12. (1) The Telecommunications Licence for internet access provision authorises the licensee to construct, develop and maintain a public telecommunications network for connectivity and internet services.

(2) An application may be made for any one of the following subcategories of the licence—

(a) class A which authorises the licensee to offer internet protocol telephony; or

(b) class B which authorises the licensee to offer public data, internet connectivity and internet services but limiting the licensee from offering internet protocol telephony:

Provided that, the licensee shall provide essential and emergency services such as emergency telecommunications services, operator assistance, customer assistance, crime stoppers, child helpline, health helpline, fire services, ambulance, anti-corruption, human safety and life, among others, free of charge.".

7. Section 15(6)(a) of the principal regulations is amended by the deletion of "the connection or interconnection of the telecommunication" and substitution of "the connection or interconnection of the telecommunication".

8. Section 24(3) of the principal regulations is amended by the deletion of "applicationinn" and substitution of "application in".

9. Section 28(3) of the principal regulations is amended by the deletion of "pplciation" and substitution of "application".

10. Section 29(1)(d) of the principal regulations is amended by the deletion of "ameauture" and substitution of "amateur".

11. Section 30(4) of the principal regulations is amended by the deletion of "Secod" and substitution of "Second".

12. Section 31(4) of the principal regulations is amended by the deletion of "vesse" and substitution of "vessel".

13. Section 33(3) of the principal regulations is amended by the deletion of "wth" and substitution of "with".

14. The principal regulations are amended by the insertion of the following section after section 63—

"*Savings*

63A. Any licence, certificate or permit issued by the Authority which, immediately before the gazetting of these regulations, was in force or effect or shall, subject to these regulations continue to have force or effect, as the case may be, and shall, on and after that day, be deemed to have been issued under these regulations.".